



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2617: insurance; prostate cancer; cost sharing

BLACKMAN FLOOR AMENDMENT

1. Incorporates the HHS Committee amendment.
2. Clarifies that the prohibition on cost sharing for diagnostic prostate cancer screenings for high-risk subscribers does not apply to out-of-network screenings.

BLACKMAN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2617

I move the following SUBSTITUTE amendment to the HEALTH & HUMAN SERVICES Committee Amendment to
HOUSE BILL 2617 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 20, chapter 4, article 3, Arizona Revised
3 Statutes, is amended by adding section 20-841.14, to read:

4 20-841.14. Prostate cancer; high-risk patients; cost sharing;
5 prohibition; applicability; definition

6 A. A HOSPITAL SERVICE CORPORATION OR MEDICAL SERVICE CORPORATION
7 THAT ISSUES, AMENDS OR RENEWS A SUBSCRIPTION CONTRACT ON OR AFTER JANUARY
8 1, 2027 MAY NOT IMPOSE COST SHARING REQUIREMENTS FOR DIAGNOSTIC PROSTATE
9 CANCER SCREENINGS FOR HIGH-RISK SUBSCRIBERS.

10 [B. THIS SECTION DOES NOT APPLY TO OUT-OF-NETWORK SCREENINGS.]

11 [B.] [C.] FOR THE PURPOSES OF THIS SECTION, "HIGH-RISK" INCLUDES
12 [MEN WHO ARE AT LEAST FORTY YEARS OF AGE AND TO WHOM] ANY OF THE FOLLOWING
13 [APPLIES]:

14 (a) [MEN WHO] ARE [AT LEAST FIFTY-FIVE YEARS OF AGE] [OF AFRICAN]
15 ANCESTRY].

16 (b) [MEN WHO] CARRY THE BREAST CANCER GENE, INCLUDING THE BRCA1 OR
17 BRCA2 GENE.

18 (c) [MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE CANCER. FOR THE
19 PURPOSES OF THIS SUBDIVISION, "[MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE
20 CANCER" INCLUDES A FIRST-DEGREE RELATIVE WHO:

21 (i) WAS DIAGNOSED WITH PROSTATE CANCER [AND WHO WAS UNDER SIXTY]
22 YEARS OF AGE AT THE TIME OF DIAGNOSIS].

1 (ii) DIED OF PROSTATE CANCER.
2 (iii) DEVELOPED A FORM OF CANCER THAT IS KNOWN TO BE ASSOCIATED
3 WITH AN INCREASED RISK OF PROSTATE CANCER.

4 (iv) WAS DIAGNOSED WITH A GENETIC MUTATION THAT IS KNOWN TO BE
5 ASSOCIATED WITH AN INCREASED RISK OF PROSTATE CANCER.

6 (d) ~~[MEN WHO]~~ ARE MILITARY VETERANS AND ~~[WHO]~~ HAVE BEEN EXPOSED TO
7 AGENT ORANGE.

8 Sec. 2. Title 20, chapter 4, article 9, Arizona Revised Statutes,
9 is amended by adding section 20-1057.21, to read:

10 20-1057.21. Prostate cancer; high-risk patients; cost
11 sharing; prohibition; applicability; definition

12 A. A HEALTH CARE SERVICES ORGANIZATION THAT ISSUES, AMENDS OR
13 RENEWS AN EVIDENCE OF COVERAGE ON OR AFTER JANUARY 1, 2027 MAY NOT IMPOSE
14 COST SHARING REQUIREMENTS FOR DIAGNOSTIC PROSTATE CANCER SCREENINGS FOR
15 HIGH-RISK ENROLLEES.

16 [B. THIS SECTION DOES NOT APPLY TO OUT-OF-NETWORK SCREENINGS.]

17 [B.] [C.] FOR THE PURPOSES OF THIS SECTION, "HIGH-RISK" INCLUDES
18 [MEN WHO ARE AT LEAST FORTY YEARS OF AGE AND TO WHOM] ANY OF THE FOLLOWING
19 [APPLIES]:

20 (a) ~~[MEN WHO]~~ ARE ~~[AT LEAST FIFTY-FIVE YEARS OF AGE]~~ [OF AFRICAN
21 ANCESTRY].

22 (b) ~~[MEN WHO]~~ CARRY THE BREAST CANCER GENE, INCLUDING THE BRCA1 OR
23 BRCA2 GENE.

24 (c) ~~[MEN WHO]~~ HAVE A FAMILY HISTORY OF PROSTATE CANCER. FOR THE
25 PURPOSES OF THIS SUBDIVISION, "~~[MEN WHO]~~ HAVE A FAMILY HISTORY OF PROSTATE
26 CANCER" INCLUDES A FIRST-DEGREE RELATIVE WHO:

27 (i) WAS DIAGNOSED WITH PROSTATE CANCER [AND WHO WAS UNDER SIXTY
28 YEARS OF AGE AT THE TIME OF DIAGNOSIS].

29 (ii) DIED OF PROSTATE CANCER.

30 (iii) DEVELOPED A FORM OF CANCER THAT IS KNOWN TO BE ASSOCIATED
31 WITH AN INCREASED RISK OF PROSTATE CANCER.

32 (iv) WAS DIAGNOSED WITH A GENETIC MUTATION THAT IS KNOWN TO BE
33 ASSOCIATED WITH AN INCREASED RISK OF PROSTATE CANCER.

34 (d) ~~[MEN WHO]~~ ARE MILITARY VETERANS AND ~~[WHO]~~ HAVE BEEN EXPOSED TO
35 AGENT ORANGE.

36 Sec. 3. Title 20, chapter 6, article 4, Arizona Revised Statutes,
37 is amended by adding section 20-1376.11, to read:

38 20-1376.11. Prostate cancer; high-risk patients; cost
39 sharing; prohibition; applicability; definition

40 A. A DISABILITY INSURER THAT ISSUES, AMENDS OR RENEWS A POLICY ON
41 OR AFTER JANUARY 1, 2027 MAY NOT IMPOSE COST SHARING REQUIREMENTS FOR
42 DIAGNOSTIC PROSTATE CANCER SCREENINGS FOR HIGH-RISK INSURED.

1 [B. THIS SECTION DOES NOT APPLY TO OUT-OF-NETWORK SCREENINGS.]

2 [B.] [C.] FOR THE PURPOSES OF THIS SECTION, "HIGH-RISK" INCLUDES
3 [MEN WHO ARE AT LEAST FORTY YEARS OF AGE AND TO WHOM] ANY OF THE FOLLOWING
4 [APPLIES]:

5 (a) [MEN WHO] ARE [AT LEAST FIFTY-FIVE YEARS OF AGE] [OF AFRICAN
6 ANCESTRY].

7 (b) [MEN WHO] CARRY THE BREAST CANCER GENE, INCLUDING THE BRCA1 OR
8 BRCA2 GENE.

9 (c) [MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE CANCER. FOR THE
10 PURPOSES OF THIS SUBDIVISION, "[MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE
11 CANCER" INCLUDES A FIRST-DEGREE RELATIVE WHO:

12 (i) WAS DIAGNOSED WITH PROSTATE CANCER [AND WHO WAS UNDER SIXTY
13 YEARS OF AGE AT THE TIME OF DIAGNOSIS].

14 (ii) DIED OF PROSTATE CANCER.

15 (iii) DEVELOPED A FORM OF CANCER THAT IS KNOWN TO BE ASSOCIATED
16 WITH AN INCREASED RISK OF PROSTATE CANCER.

17 (iv) WAS DIAGNOSED WITH A GENETIC MUTATION THAT IS KNOWN TO BE
18 ASSOCIATED WITH AN INCREASED RISK OF PROSTATE CANCER.

19 (d) [MEN WHO] ARE MILITARY VETERANS AND [WHO] HAVE BEEN EXPOSED TO
20 AGENT ORANGE.

21 Sec. 4. Title 20, chapter 6, article 5, Arizona Revised Statutes,
22 is amended by adding section 20-1406.11, to read:

23 20-1406.11. Prostate cancer; high-risk patients; cost
24 sharing; prohibition; applicability; definition

25 A. A GROUP DISABILITY INSURER OR A BLANKET DISABILITY INSURER THAT
26 ISSUES, AMENDS OR RENEWS A POLICY ON OR AFTER JANUARY 1, 2027 MAY NOT
27 IMPOSE COST SHARING REQUIREMENTS FOR DIAGNOSTIC PROSTATE CANCER SCREENINGS
28 FOR HIGH-RISK INSURED.

29 [B. THIS SECTION DOES NOT APPLY TO OUT-OF-NETWORK SCREENINGS.]

30 [B.] [C.] FOR THE PURPOSES OF THIS SECTION, "HIGH-RISK" INCLUDES
31 [MEN WHO ARE AT LEAST FORTY YEARS OF AGE AND TO WHOM] ANY OF THE FOLLOWING
32 [APPLIES]:

33 (a) [MEN WHO] ARE [AT LEAST FIFTY-FIVE YEARS OF AGE] [OF AFRICAN
34 ANCESTRY].

35 (b) [MEN WHO] CARRY THE BREAST CANCER GENE, INCLUDING THE BRCA1 OR
36 BRCA2 GENE.

37 (c) [MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE CANCER. FOR THE
38 PURPOSES OF THIS SUBDIVISION, "[MEN WHO] HAVE A FAMILY HISTORY OF PROSTATE
39 CANCER" INCLUDES A FIRST-DEGREE RELATIVE WHO:

40 (i) WAS DIAGNOSED WITH PROSTATE CANCER [AND WHO WAS UNDER SIXTY
41 YEARS OF AGE AT THE TIME OF DIAGNOSIS].

1 (ii) DIED OF PROSTATE CANCER.
2 (iii) DEVELOPED A FORM OF CANCER THAT IS KNOWN TO BE ASSOCIATED
3 WITH AN INCREASED RISK OF PROSTATE CANCER.
4 (vi) WAS DIAGNOSED WITH A GENETIC MUTATION THAT IS KNOWN TO BE
5 ASSOCIATED WITH AN INCREASED RISK OF PROSTATE CANCER.
6 (d) ~~[MEN WHO]~~ ARE MILITARY VETERANS AND ~~[WHO]~~ HAVE BEEN EXPOSED TO
7 AGENT ORANGE.

8 Enroll and engross to conform
9 Amend title to conform

WALT BLACKMAN

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